

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Aminul Islam.

Civil Revision No.2980 of 2009.

Hatem Ali Howlader and another.
.....Petitioners.

Vs.

Abdul Jalil Howlader and others.
..... Opposite-Parties.

Mr. Tapan Kumar Chakraborty, Advocate
..... for the petitioners.

Mr. Md. Abdul Haque, Advocate.
.....for the opposite-party No.1.

Heard on: 21.06.2023, 11.07.2023 and
Judgment on: 13.07.2023.

This Rule was issued calling upon the opposite party Nos. 1-4 to show cause as to why the impugned judgment and order dated 01.03.2009 passed by the learned District Judge, Barishal in allowing the Civil Revision No.13 of 2008 and thereby reversing the judgment and order dated 11.10.2007 passed by the learned Joint District Judge, 1st Court, Barishal in Miscellaneous Case No.40 of 2004 under Order IX Rule 13 and section 151 of the Code of Civil Procedure allowing the Miscellaneous Case and setting aside the ex-parte decree dated 29.08.1989 passed the then Court of Sub-ordinate Judge, 1st Court, Barishal in Title Suit No.12 of 1979, should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

The relevant fact in short, is that the opposite-party Nos.1-4 instituted a Title Suit No.12 of 1979 in the then Court of Sub-ordinate Judge, 1st Court, Barishal for declaration of title that the judgment and decree dated 26.02.1970 passed by the same Court in Title Suit No.231 of 1969 was void, illegal and not binding upon them. They were owner of the property described in schedule “Ga” of the plaint by way of oral settlement. The suit was filed on 17.01.1979 and was ex-parte decreed on 29.08.1989 against the petitioners. When the summons of the title Suit No.12 of 1979 was duly served upon the defendant but the defendant did not appear to contest the original suit in the then Subordinate Judge, 1st Court, Barishal.

The defendant as petitioners filed a Miscellaneous Case No.40 of 2004 under Order IX Rule 13 and section 151 of the Code of Civil Procedure for setting aside the judgment and decree dated 29.08.1989. The summons were not duly served upon them and rather were collusively suppressed the summons of the Title Suit No.12 of 1979 with the process server and thereby ex-parte decree was obtained by fraud on 29.08.1989. The petitioners were not aware of the suit or ex-parte decree and came to know of it for the first time on 6th Jaistha, 1411 B.S. Thereafter filed a Miscellaneous Case No.40 of 2004 under Order IX Rule 13 and section 151 of the Code of Civil Procedure before the then Subordinate Judge, 1st Court, Barishal.

The opposite-party No.4 contested the suit by filing written objection denying the all material allegations made in the application contending, inter-alia, that the summons of the Title Suit No.12 of 1979 was duly served and that the Miscellaneous Case under Order IX Rule 13 of the Code of Civil Procedure is barred by limitation and barred by defect of parties and as such the suit is not maintainable.

At the trial, the petitioner examined 3(three) witnesses and the opposite-party Nos.1-4 also examined 3(three) witnesses in support of their respective cases.

The learned judge of the trial Court after hearing the parties, considering the evidence and materials on record allowed the Miscellaneous Case by his judgment and order dated 11.10.2007. Against the said judgment and order the plaintiff as opposite parties filed a Civil Revision before the learned District Judge, Barishal who after hearing the parties, considering the materials on record allowed the Civil Revision by his judgment and order dated 01.03.2009.

Being aggrieved by and dissatisfied with the impugned judgment and order dated 01.03.2009 the defendant as petitioners preferred in Civil Revisional Application under Section 115(4) of the Code of Civil Procedure before this Court and obtained the present Rule. At the issuance of the Rule, inadvertently, the leave was not granted. However, the opposite party did not raise any objection regarding granting leave. Therefore, the Rule is taken up for hearing on merit.

Mr. Tapan Kumar Chakraborty, the learned Advocate appearing for the petitioners who placed the Revisional application and submits that the learned Judge of the Revisional Court below was committed an error of law in allowing the Civil Revision without considering that the summons of the original suit was not properly served and suppressing the summons and their showing false address. He further submits that the plaintiffs of the original suit have totally failed to prove their case that the summons of the original Suit were not duly served but the learned Judge of the Revisional Court below totally misread and misconstrued the evidence on record and thereby come to an erroneous conclusion and as such the impugned judgment and order is liable to be set aside. He lastly submits that the learned Judge of the Revisional Court below arrived at an erroneous conclusion on the point of limitation on misreading and non reading of the material evidence on record the Revisional Court below allowed the Revisional Case in a most casual and arbitrary manner, occasioning failure of justice and as such he prayed for to make the Rule absolute. In support of his contention he has referred the decisions reported in 35 DLR(AD)162, 16 BLD (AD) 4 and 24 BLC 153.

Mr. Md. Abdul Haque, the learned Advocate appearing for the opposite-parties oppose the Rule and submits that the petitioners have totally failed to prove their case and he failed to prove the date of knowledge of the ex-parte decree in original Title Suit No.12 of 1979. He further submits that after 15(fifteen) years the petitioners filed a

Miscellaneous Case No.40 of 2004 but no explanation was given in their petition. He lastly submits that the Revisional Court below considering the facts and circumstances of the case and relevant provisions of law rightly allowed the Revisional application and was not committed any error of law and as such the Rule is liable to be discharged. In support of his contention he has referred the decisions reported in 51 DLR(AD) 256 and 49 DLR 561.

In order to appreciate the submissions made by the learned Advocates for the parties, I have gone through the Revisional application, pleadings, impugned judgment and order of the Courts below very carefully.

Now the question calls for consideration whether the learned Judge of the Revisional Court below committed any error of law resulting in an error in the decision occasioning failure of justice in passing the impugned judgment and order.

Scrutinizing the relevant papers and documents, it is obvious to note that admittedly, the original suit was filed on 17.01.1979 and the ex-parte judgment and decree passed on 29.08.1989. Thereafter, the defendant as petitioners filed a Miscellaneous Case No.40 of 2004 under Order IX Rule 13 of the Code of Civil Procedure on 01.06.2004. The plaintiff as opposite-party contested the Miscellaneous Case by filing written objection. Admittedly, after 15(fifteen) years the defendant as petitioners filed a Miscellaneous Case on 01.06.2004 and the ex-parte judgment and decree passed on 29.08.1989. But the petitioners filed a Miscellaneous

Case without any application under section 5 of the Limitation Act for condonation of delay of 15(fifteen) years and occurred. It appears that the petitioner claimed that the summons of the Title Suit No.12 of 1979 was not duly served upon the defendant as petitioners. The service of summons were served in collusive with the process server and so called report shown before the learned trial Court. On this point the O.P.W-2 Abdur Rashid Mridha (Process server) deposed that he went to the defendant house for service summons. But the defendant denied to receive the summons, consequently the process server served the summons by hanging. It further appears that the plaintiff as opposite party raised the issue that the plaintiff No.05 of the original suit was not impleaded as party in the said Miscellaneous Case and during trial the opposite party Nos.05, 10 and 19 died but their heirs were not substituted in that Miscellaneous Case. The learned trial Court also observed that the Miscellaneous Case is barred by some defect of parties. The Miscellaneous Case was filed by the defendant and it was the duty of the defendant to implead all the plaintiffs in the Miscellaneous Case or any heirs of the plaintiff's of the original suit. The plaintiff side raised objection regarding non impleading the plaintiff's/heirs of the plaintiffs in the Miscellaenous Case and that allegation was not controverted by the defendant. He further observed that the petitioner knew about the ex-parte decree on 20.05.2004 from P.W.03 Yakub Ali and that time Siddik Majhee and Salim Sheikh were present. The said Salim Sheikh was not

examined. Though the P.W.03 Yakub Ali Howlader stated in his cross-examination that he cannot remember that on which date he disclosed the news of ex-parte decree. No other evidence is available to support the date of knowledge of ex-parte decree. Therefore, in view of the matter that the petitioner had totally failed to prove the date of knowledge of the Ex-parte decree. It is crystal clear that the Miscellaneous Case under Order IX, Rule 13 of the Code of Civil Procedure is barred by limitation and also barred by defect of parties and as such the learned Revisional Court below did not commit any error of law resulting in an error in the decision occasioning failure of justice.

In view of the above, it appears to me that findings arrived at by the Revisional Court below having been rested upon considerations and discussions of the facts and circumstances of the case and also on a correct and proper analysis of the legal aspect involved in the case. The impugned judgment and order passed by the Revisional Court below in its entirety are well founded and reasons in the facts and circumstances of the case. Therefore, ground urged and contention advanced by the learned Advocate for the petitioners are not exposition of law. However, I have gone through the decisions reported in 35 DLR(AD)162, 16 BLD(AD)4 and 24 BLC 153 as referred by the learned Advocate for the petitioners. The facts leading to those cases are distinguishable to that of the instant case and therefore, to that effect I am unable to accept his submissions. On the other hand the opposite parties referred in his submissions reported

in 51 DLR(AD) 256 and 49 DLR 561. On the contrary, the legal pleas taken by the learned Advocate for the opposite parties prevail and appear to have a good deal of force.

I have perused the judgment and order and relevant documents, material on record and suffice it to say that the learned Judge of the Revisional Court below did not commit any error of law arriving at such a decision and in this view of the matter the judgment and order passed by him on the basis of such a decision calls for no interference in Revision.

In view of the discussions, decisions and reasons stated above, I do not find any error of law done by the lower Revisional Court allowing the Civil Revision resulting in an error in the decision occasioning failure of justice and as such, therefore, no leave is granted under section 115(4) of the Code of Civil Procedure and the same is liable to be discharged.

In the result, the Rule is discharged.

However, there will be no order as to costs.

The impugned judgment and order dated 01.03.2009 passed by the learned District Judge, Barishal in Civil Revision No.13 of 2008 is affirmed and reversing the judgment and order dated 11.10.2007 passed by the learned Joint District Judge, 1st Court, Barishal in Miscellaneous Case No.40 of 2004 is hereby set aside.

Let a copy of the judgment and order be sent to the Court concerned at once.